

25NWCV02895 25NWCV02895

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Case Number: 25NWCV02895 Hearing Date: July 14, 2026 Dept: P

SAMANTHA MARTINEZ v. LOS

ANGELES UNIFIED SCHOOL DISTRICT

CASE NO.: 25NWCV02895

HEARING: 07/14/2026 @ 9:30 AM

#13

TENTATIVE ORDER

Defendant Los Angeles Unified School District's demurrer
to the complaint is SUSTAINED with 30 days LEAVE TO AMEND.

Moving party to give notice.

Defendant Los Angeles Unified School District (Defendant) demurs
to the complaint.

Background

On August 13, 2025, Plaintiff Samantha Martinez, a minor, by
and through her Guardian Ad Litem Teresa Martinez (Plaintiff) filed this action
against Defendant and Does 1 through 50. The complaint alleges that on August
22, 2024, while Plaintiff was a student attending class at Jaime Escalante
Elementary School, "she asked to use the restroom and was her request was
denied by the teacher and/or teacher's aid. Plaintiff attempted to exit the
classroom due to her urgency to use the restroom as the teacher and/or

teacher's aid blocked the doorway." (Complaint, ¶ 14.) "While attempting to exit the classroom, the teacher and/or teacher's aid physically fell on top of Plaintiff's person" resulting in injuries. (Complaint, ¶ 14.) The complaint asserts one cause of action for negligent failure to supervise.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law." (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at p. 747.) A complaint will be upheld against a demurrer if it pleads facts sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

Code of Civil Procedure

section 430.10, subdivision (f) provides for a demurrer where a pleading is uncertain. Demurrers for uncertainty are disfavored and are only sustained where a pleading is so incomprehensible a defendant cannot reasonably respond. (A.J. Fistes v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695; Khoury v. Maly's of California (1993) 14 Cal.App.4th 612, 616.)

"Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) A "[p]laintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Ibid.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the demurring party meet and confer in person, by telephone, or by video conference

at least five days before the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve a declaration stating either: (a) "The means by which the demurring party met and conferred...and that the parties did not reach an agreement resolving the objections raised in the demurrer" or (b) "[t]hat the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith." (Code Civ. Proc., § 430.41, subd. (a)(3).)

Defendant met and conferred with Plaintiff's counsel on February 12, 2026. (Garcia Decl., ¶ 5.) Plaintiff's counsel advised Defendant that Plaintiff would file an amended complaint, however, to date, no amended complaint has been filed. (Garcia Decl., ¶¶ 6-7.) Defendant complies with the meet and confer requirement.

Discussion

Defendant demurs to Plaintiff's complaint on the grounds that the complaint fails to plead facts sufficient to constitute a cause of action and is uncertain. This demurrer is unopposed.

Government Code section 815.2, subdivision (a) provides: "A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative."].) "[D]irect tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care." (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.) "[T]o state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity.' [Citation.]" (Lopez v. Southern Cal. Rapid Transit Dist. (1985) 40 Cal.3d 780, 795; see also de Villers v. County of San Diego (2007) 156 Cal.App.4th 238, 252.)

The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (Evan F. v. Hughson United Methodist Church

(1992) 8 Cal.App.4th 828, 836–37.) “[A]n employer will not be held vicariously liable for an employee’s malicious or tortious conduct if the employee substantially deviates from the employment duties for personal purposes.” (Farmers Ins. Group v. County of Santa Clara (1995) 11 Cal.4th 992, 1004-05.)

Here, the complaint alleges “Plaintiff...was attending class at the subject premises when she asked to use the restroom and was her request was denied by the teacher and/or teacher’s aid. Plaintiff attempted to exit the classroom due to her urgency to use the restroom as the teacher and/or teacher’s aid blocked the doorway. While attempting to exit the classroom, the teacher and/or teacher’s aid physically fell on top of Plaintiff’s person.” (Complaint, ¶ 14.) The complaint alleges Defendant is vicariously liable for Plaintiff’s injuries based on a breach of the duty of care by its employees. (Complaint, ¶ 20.)

As argued by Defendant, the complaint is devoid of factual allegations that the supervising personnel knew or should have known the teacher or teacher’s aide’s propensities but nevertheless failed to supervise the teacher or teacher’s aide. Additionally, the complaint does not include facts regarding whether Plaintiff’s injuries are the result of a foreseeable risk of harm based on the teacher or teacher’s aide’s propensities or whether Plaintiff’s injuries were caused by a total lack of supervision or ineffective supervision. Further, the complaint does not allege whether the teacher or teacher’s aide’s act was within the scope of employment.

While the Court finds that the complaint lacks sufficient allegations to state a cause of action, the Court does not find the pleading uncertain.

Accordingly, Defendant’s unopposed demurrer to the complaint is SUSTAINED with 30 days LEAVE TO AMEND.